

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

NOTE: OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, AND 30.

1. REQUISITION NUMBER W68SBV60689785			PAGE 1 OF 43		
2. CONTRACT NUMBER W912EF26CA017	3. AWARD/EFFECTIVE DATE 14 APR 2026	4. ORDER NUMBER	5. SOLICITATION NUMBER W912EF26QA037	6. SOLICITATION ISSUE DATE	
7. FOR SOLICITATION INFORMATION CALL:			a. NAME KRISTIN KREUTZER		b. TELEPHONE NUMBER (No collect calls) 509-527-7010
			8. OFFER DUE DATE/ LOCAL TIME		
9. ISSUED BY US ARMY ENGINEER DISTRICT WALLA WAL KO CONTRACTING DIVISION, 201 NORTH 3RD AVE WALLA WALLA, WA 99362-1876 UNITED STATES TRACY GLUCK, CONTRACTING OFFICER, EMAIL: TRACY.GLUCK@USACE. ARMY.MIL TELEPHONE: 5095277421			10. THIS ACQUISITION IS ☐ UNRESTRICTED OR ☒ SET ASIDE: 100 % FOR: ☒ SMALL BUSINESS ☐ WOMEN-OWNED SMALL BUSINESS (WOSB) NORTH AMERICAN INDUSTRY CLASSIFICATION STANDARD (NAICS): 561730 ☐ HUBZONE SMALL BUSINESS ☐ ECONOMICALLY DISADVANTAGED WOMEN-OWNED SMALL BUSINESS (EDWOSB) SIZE STANDARD: USD 9,500,000.00 ☐ SERVICE-DISABLED ☐ 8(A)		
11. DELIVERY FOR FREE ON BOARD (FOB) DESTINATION UNLESS BLOCK IS MARKED ☒ SEE SCHEDULE		12. DISCOUNT TERMS NET DAYS 30		13a. THIS CONTRACT IS A ☐ RATED ORDER UNDER THE DEFENSE PRIORITIES AND ALLOCATIONS SYSTEM - DPAS (15 CFR 700)	
				13b. RATING 14. METHOD OF SOLICITATION REQUEST ☐ REQUEST ☐ INVITATION ☐ FOR ☐ FOR QUOTE ☐ FOR BID ☐ PROPOSAL (RFQ) (IFB) (RFP)	
15. DELIVER TO SEE SCHEDULE			16. ADMINISTERED BY US ARMY ENGINEER DISTRICT WALLA WAL CONTRACTING DIVISION, 201 NORTH 3RD AVE WALLA WALLA, WA 99362-1876		
17a. CONTRACTOR/ OFFEROR O'MALLEY BROTHERS CORPORATION 7842 SE 282ND AVE GRESHAM, OR 97080-8217 UNITED STATES LEAH BONSTEAD, EMAIL: LEAH.BONSTEAD@USACE.ARMY.MIL TELEPHONE: TELEPHONE NUMBER			18a. PAYMENT WILL BE MADE BY W1J5 USACE FIN CTR 5722 INTEGRITY DRIVE, BUILDING 787 MILLINGTON, TN 38054-5005 UNITED STATES		
☐ 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER			18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☒ SEE ADDENDUM		
19. ITEM NUMBER	20. SCHEDULE OF SUPPLIES/SERVICES		21. QUANTITY	22. UNIT	23. UNIT PRICE
	SEE CONTINUATION				
			(Use Reverse and/or Attach Additional Sheets as Necessary)		
25. ACCOUNTING AND APPROPRIATION DATA SEE CONTINUATION				26. TOTAL AWARD AMOUNT (For Government Use Only) USD 43,125.00	
☐ 27a. SOLICITATION INCORPORATES BY REFERENCE (FEDERAL ACQUISITION REGULATION) FAR 52.212-1, 52.212-4. FAR 52.212-3 ARE ☐ ARE NOT ATTACHED AND 52.212-5 ARE ATTACHED. ADDENDA					
☒ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA ☒ ARE ☐ ARE NOT ATTACHED					
☒ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN 1 COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED			☐ 29. AWARD OF CONTRACT: REFERENCE OFFER DATED . YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS:		
30a. SIGNATURE OF OFFEROR/CONTRACTOR Jennifer Dolan Digitally signed by Jennifer Dolan Date: 2026.04.13 15:37:48 -0700			31a. UNITED STATES OF AMERICA (SIGNATURE OF CONTRACTING OFFICER) GLUCK.TRACY.J.126 3399249 Digitally signed by GLUCK.TRACY.J.1263399249 Date: 2026.04.14 10:34:00 -0700		
30b. NAME AND TITLE OF SIGNER (Type or print)		30c. DATE SIGNED	31b. NAME OF CONTRACTING OFFICER (Type or print)		31c. DATE SIGNED
Jennifer Dolan, Project Manager		13 April 2026	Tracy Gluck		14 APR 2026

Continuation of Supplies or Services and Prices/Costs

Additional Information/Notes

Item	Supplies/Service	Quantity	Unit	Unit Price	Amount
0001	FY26 FCRPS MNA Toothaker HMU Plantings (3123)				
0001AA	Toothaker Habitat Invasive Vegetation Removal *Please see PWS for details* Vegetation removal in the Shoreline Area from 5/1/26 to 5 /31/26. Pricing Arrangement: Firm Fixed Price ACRN: AA PR Number: W68SBV60689785PR Line Item Number: 0001	1	Job	USD 12,856.24	Firm Price USD 12,856.24 Funded Amount USD 12,856.24
0001AB	Toothaker Habitat Invasive Vegetation Removal *Please see PWS for details* Vegetation removal in the Shoreline Area from 5/1/26 to 5 /31/26. Pricing Arrangement: Firm Fixed Price ACRN: AB PR Number: W68SBV60689785PR Line Item Number: 0002	1	Job	USD 4,643.76	Firm Price USD 4,643.76 Funded Amount USD 4,643.76
0002	Toothaker Habitat 2026 Herbicide Treatments *Please see PWS for details* Treatments will occur between May 1 and September 30 2026.	3	Treatments	USD 8,541.666	Firm Price USD 25,625.00 Funded Amount

	Pricing Arrangement: Firm Fixed Price ACRN: AB PR Number: W68SBV60689785PR Line Item Number: 0002				USD 25,625.00
Option Line Item 1001	Toothaker Habitat 2026 Herbicide Treatments *Please see PWS for details* Treatments will occur between May 1 and September 30 2027. Pricing Arrangement: Firm Fixed Price	3	Treatments	USD 8,541.666	Firm Price USD 25,625.00

Continuation of Description

Requirements

Toothaker Vegetation Removal

0001AA

Product Service Code : S208

North American Industry Classification System (NAICS) : 561730

0001AB

Product Service Code : S208

North American Industry Classification System (NAICS) : 561730

0002

Product Service Code : S208

North American Industry Classification System (NAICS) : 561730

Continuation of Inspection and Acceptance

Overall Contract Inspection/Acceptance Locations

0001AA	Inspection and Acceptance Location Both Destination Instructions: Contact Leah Bonstead for details on the specific location of work. DoDAAC: 960401 CountryCode: USA ARMY CORPS OF ENGINEERS CIVIL WORKS WALLA WALLA DISTRICT MCNARY WHSE, 82790 DEVORE RD UMATILLA, OR 97882 UNITED STATES Leah Bonstead
0001AB	Inspection and Acceptance Location Both Destination Instructions: Contact Leah Bonstead for details on the specific location of work. DoDAAC: 960401 CountryCode: USA ARMY CORPS OF ENGINEERS CIVIL WORKS WALLA WALLA DISTRICT MCNARY WHSE, 82790 DEVORE RD UMATILLA, OR 97882 UNITED STATES Leah Bonstead
0002	Inspection and Acceptance Location Both Destination Instructions: Contact Leah Bonstead for details on the specific location of work.

	DoDAAC: 960401 CountryCode: USA ARMY CORPS OF ENGINEERS CIVIL WORKS WALLA WALLA DISTRICT MCNARY WHSE, 82790 DEVORE RD UMATILLA, OR 97882 UNITED STATES Leah Bonstead
Option Line Item 1001	Inspection and Acceptance Location Both Destination Instructions: Contact Leah Bonstead for details on the specific location of work. DoDAAC: 960401 CountryCode: USA ARMY CORPS OF ENGINEERS CIVIL WORKS WALLA WALLA DISTRICT MCNARY WHSE, 82790 DEVORE RD UMATILLA, OR 97882 UNITED STATES Leah Bonstead

Continuation of Deliveries or Performance

0001AA	Quantity 1 Job Address and POC Period of Performance From 01 May 2026 To 30 Apr 2027
0001AB	Quantity 1 Job Address and POC Period of Performance From 01 May 2026 To 30 Apr 2027
0002	Quantity 3 Treatments Address and POC Period of Performance From 01 May 2026 To 30 Apr 2027
Option	Quantity 3 Treatments

Line Item 1001	Address and POC Period of Performance From 01 May 2027 To 30 Apr 2028
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Continuation of Accounting and Appropriation Data

ACRN	LOA	Total Amount														
AA	^^NA^096^^X^3123^000^^254^D^NA^^^^0000 ^8736^096454^2434^G4H4CE0^43J227^43J227^ 2540^W68SBV60689785^010920^	USD 12,856.24														
<table><tr><th>Line Item</th><th>R/MIPR - PR Line Item#</th><th>CIN</th><th>Amount</th></tr><tr><td>SLIN (Separately Identified) 0001AA</td><td>W68SBV60689785 - 0001</td><td></td><td>USD 12,856.24</td></tr></table>					Line Item	R/MIPR - PR Line Item#	CIN	Amount	SLIN (Separately Identified) 0001AA	W68SBV60689785 - 0001		USD 12,856.24				
Line Item	R/MIPR - PR Line Item#	CIN	Amount													
SLIN (Separately Identified) 0001AA	W68SBV60689785 - 0001		USD 12,856.24													
AB	^^089^096^^X^4045^000^^254^D^NA^^^^000 0^8736^096454^2434^G4H4CE0^43J227^43J227^ ^2540^W68SBV60689785^010920^	USD 30,268.76														
<table><tr><th>Line Item</th><th>R/MIPR - PR Line Item#</th><th>CIN</th><th>Amount</th></tr><tr><td>SLIN (Separately Identified) 0001AB</td><td>W68SBV60689785 - 0002</td><td></td><td>USD 4,643.76</td></tr><tr><td>CLIN 0002</td><td>W68SBV60689785 - 0002</td><td></td><td>USD 25,625.00</td></tr></table>					Line Item	R/MIPR - PR Line Item#	CIN	Amount	SLIN (Separately Identified) 0001AB	W68SBV60689785 - 0002		USD 4,643.76	CLIN 0002	W68SBV60689785 - 0002		USD 25,625.00
Line Item	R/MIPR - PR Line Item#	CIN	Amount													
SLIN (Separately Identified) 0001AB	W68SBV60689785 - 0002		USD 4,643.76													
CLIN 0002	W68SBV60689785 - 0002		USD 25,625.00													

Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements.	2017-01		
52.204-13	System for Award Management-Maintenance. (Deviation 2026-O0038)	2026-02		
52.204-13	System for Award Management-Maintenance. (Deviation 2026-O0038) (Alternate I)	2026-02	Alternate I	2026-02
52.209-6	Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (Deviation 2026-O0038)	2026-02		
52.212-4	Terms and Conditions-Commercial Products and Commercial Services. (Deviation 2026-O0038)	2026-02		
52.219-6	Notice of Total Small Business Set-Aside. (Deviation 2026-O0038)	2026-02		
52.222-36	Equal Opportunity for Workers with Disabilities. (Deviation 2026-O0038)	2026-02		

52.222-41	Service Contract Labor Standards. (Deviation 2026-O0038)	2026-02		
52.222-50	Combating Trafficking in Persons. (Deviation 2026-O0038)	2026-02		
52.222-55	Minimum Wages for Contractor Workers Under Executive Order 14026. (Deviation 2026-O0038)	2026-02		
52.222-62	Paid Sick Leave Under Executive Order 13706. (Deviation 2026-O0038)	2026-02		
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving.	2024-05		
52.232-33	Payment by Electronic Funds Transfer-System for Award Management.	2018-10		
52.232-40	Providing Accelerated Payments to Small Business Subcontractors.	2023-03		
52.233-3	Protest after Award. (Deviation 2026-O0038)	2026-02		
52.233-3	Protest after Award. (Deviation 2026-O0038) (Alternate I)	2026-02	Alternate I	2026-02
52.233-4	Applicable Law for Breach of Contract Claim. (Deviation 2026-O0038)	2026-02		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.203-7000	Requirements Relating to Compensation of Former DoD Officials.	2011-09		
252.203-7002	Requirement to Inform Employees of Whistleblower Rights.	2022-12		
252.204-7012	Safeguarding Covered Defense Information and Cyber Incident Reporting.	2024-05		
252.204-7018	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.	2023-01		
252.225-7056	Prohibition Regarding Business Operations with the Maduro Regime.	2023-01		
252.225-7060	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region.	2023-06		
252.232-7003	Electronic Submission of Payment Requests and Receiving Reports.	2018-12		
252.232-7010	Levies on Contract Payments.	2006-12		

FAR Clauses Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.222-42	Statement of Equivalent Rates for Federal Hires.	2014-05		

Statement of Equivalent Rates for Federal Hires (May 2014)

In compliance with the Service Contract Labor Standards statute and the regulations of the Secretary of Labor (29 CFR Part 4), this clause identifies the classes of service employees expected to be employed under the contract and states the wages and fringe benefits payable to each if they were employed by the contracting agency subject to the provisions of 5 U.S.C. 5341 or 5332.

This Statement is for Information Only: It is not a Wage Determination

Employee Class	Monetary Wage-Fringe Benefits
111210	WG-4 Step 1 \$20.59
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____

(End of clause)

Contract Terms and Conditions Required To Implement Statutes or Executive Orders — Commercial Products and Commercial Services

FAR Clauses Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.212-5	Contract Terms and Conditions Required to Implement Statutes or Executive Orders - Commercial Products and Commercial Services. (DEVIATION 2025-O0003 and 2025-O0004)	2025-03	Deviation 2025-O0004	2025-03

Contract Terms and Conditions Required To Implement Statutes or Executive Orders- Commercial Products and Commercial Services (MAR 2025) (DEVIATION 2025-O0003 and 2025-O0004)

(a) The Contractor shall comply with the following Federal Acquisition Regulation (FAR) clauses, which are incorporated in this contract by reference, to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

(1) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(2) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (Dec 2023) (Section 1634 of Pub. L. 115-91).

(3) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (Nov 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).

(4) 52.209-10, Prohibition on Contracting with Inverted Domestic Corporations (Nov 2015).

(5) 52.232-40, Providing Accelerated Payments to Small Business Subcontractors (Mar 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801).

(6) 52.233-3, Protest After Award (Aug 1996) (31 U.S.C. 3553).

(7) 52.233-4, Applicable Law for Breach of Contract Claim (Oct 2004) (Public Laws 108-77 and 108-78 (19 U.S.C. 3805 note)).

(b) The Contractor shall comply with the FAR clauses in this paragraph (b) that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

[Contracting Officer check as appropriate.]

[] (1) 52.203-6, Restrictions on Subcontractor Sales to the Government (Jun 2020), with Alternate I (Nov 2021) (41 U.S.C. 4704 and 10 U.S.C. 4655).

[] (2) 52.203-13, Contractor Code of Business Ethics and Conduct (Nov 2021) (41 U.S.C. 3509)).

[] (3) 52.203-15, Whistleblower Protections under the American Recovery and Reinvestment Act of 2009 (Jun 2010) (Section 1553 of Pub. L. 111-5). (Applies to contracts funded by the American Recovery and Reinvestment Act of 2009.)

[] (4) 52.203-17, Contractor Employee Whistleblower Rights (Nov 2023) (41 U.S.C. 4712); this clause does not apply to contracts of DoD, NASA, the Coast Guard, or applicable elements of the intelligence community-see FAR 3.900(a).

☐ (5) 52.204-10, Reporting Executive Compensation and First-Tier Subcontract Awards (Jun 2020) (Pub. L. 109-282) (31 U.S.C. 6101 note).

☐ (6) [Reserved].

☐ (7) 52.204-14, Service Contract Reporting Requirements (Oct 2016) (Pub. L. 111-117, section 743 of Div. C).

☐ (8) 52.204-15, Service Contract Reporting Requirements for Indefinite-Delivery Contracts (Oct 2016) (Pub. L. 111-117, section 743 of Div. C).

☒ (9) 52.204-27, Prohibition on a ByteDance Covered Application (Jun 2023) (Section 102 of Division R of Pub. L. 117-328).

☐ (10) 52.204-28, Federal Acquisition Supply Chain Security Act Orders-Federal Supply Schedules, Governmentwide Acquisition Contracts, and Multi-Agency Contracts. (Dec 2023) (Pub. L. 115-390, title II).

☐ (11)

(i) 52.204-30, Federal Acquisition Supply Chain Security Act Orders-Prohibition. (Dec 2023) (Pub. L. 115-390, title II).

☐ (ii) Alternate I (Dec 2023) of 52.204-30.

☐ (12) 52.209-6, Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (Jan 2025) (31 U.S.C. 6101 note).

☐ (13) 52.209-9, Updates of Publicly Available Information Regarding Responsibility Matters (Oct 2018) (41 U.S.C. 2313).

☐ (14) [Reserved].

☐ (15) 52.219-3, Notice of HUBZone Set-Aside or Sole-Source Award (Oct 2022) (15 U.S.C. 657a).

☐ (16) 52.219-4, Notice of Price Evaluation Preference for HUBZone Small Business Concerns (Oct 2022) (if the offeror elects to waive the preference, it shall so indicate in its offer) (15 U.S.C. 657a).

☐ (17) [Reserved]

☒ (18)

(i) 52.219-6, Notice of Total Small Business Set-Aside (Nov 2020) (15 U.S.C. 644).

☐ (ii) Alternate I (Mar 2020) of 52.219-6.

☐ (19)

(i) 52.219-7, Notice of Partial Small Business Set-Aside (Nov 2020) (15 U.S.C. 644).

☐ (ii) Alternate I (Mar 2020) of 52.219-7.

☐ (20) 52.219-8, Utilization of Small Business Concerns (Jan 2025)(15 U.S.C. 637(d)(2) and (3)).

☐ (21)

(i) 52.219-9, Small Business Subcontracting Plan (Jan 2025) (15 U.S.C. 637(d)(4)).

☐ (ii) Alternate I (Nov 2016) of 52.219-9.

☐ (iii) Alternate II (Nov 2016) of 52.219-9.

☐ (iv) Alternate III (Jun 2020) of 52.219-9.

☐ (v) Alternate IV (Jan 2025) of 52.219-9.

☐ (22)

(i) 52.219-13, Notice of Set-Aside of Orders (Mar 2020) (15 U.S.C. 644(r)).

☐ (ii) Alternate I (Mar 2020) of 52.219-13.

☒ (23) 52.219-14, Limitations on Subcontracting (Oct 2022) (15 U.S.C. 657s).

☐ (24) 52.219-16, Liquidated Damages-Subcontracting Plan (Sep 2021) (15 U.S.C. 637(d)(4)(F) (i)).

☐ (25) 52.219-27, Notice of Set-Aside for, or Sole-Source Award to, Service-Disabled Veteran-Owned Small Business (SDVOSB) Concerns Eligible Under the SDVOSB Program (Feb 2024) (15 U.S.C. 657f).

☐ (26)

(i) 52.219-28, Postaward Small Business Program Rerepresentation (Jan 2025) (15 U.S.C. 632 (a)(2)).

☐ (ii) Alternate I (Mar 2020) of 52.219-28.

☐ (27) 52.219-29, Notice of Set-Aside for, or Sole-Source Award to, Economically

Disadvantaged Women-Owned Small Business Concerns (Oct 2022) (15 U.S.C. 637(m)).

[] (28) 52.219-30, Notice of Set-Aside for, or Sole-Source Award to, Women-Owned Small Business Concerns Eligible Under the Women-Owned Small Business Program (Oct 2022) (15 U.S.C. 637(m)).

[] (29) 52.219-32, Orders Issued Directly Under Small Business Reserves (Mar 2020) (15 U.S.C. 644(r)).

[] (30) 52.219-33, Nonmanufacturer Rule (Sep 2021) (15 U.S.C. 637(a)(17)).

[X] (31) 52.222-3, Convict Labor (Jun 2003) (E.O.11755).

[] (32) 52.222-19, Child Labor-Cooperation with Authorities and Remedies (Jan 2025)(E.O. 13126).

[] (33) [Reserved]

[] (34) [Reserved]

[] (35)

(i) 52.222-35, Equal Opportunity for Veterans (Jun 2020) (38 U.S.C. 4212).

☐ (ii) Alternate I (Jul 2014) of 52.222-35.

☐ (36)

(i) 52.222-36, Equal Opportunity for Workers with Disabilities (Jun 2020) (29 U.S.C. 793).

☐ (ii) Alternate I (Jul 2014) of 52.222-36.

☒ (37) 52.222-37, Employment Reports on Veterans (Jun 2020) (38 U.S.C. 4212).

☐ (38) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (Dec 2010) (E.O. 13496).

☒ (39)

(i) 52.222-50, Combating Trafficking in Persons (Nov 2021) (22 U.S.C. chapter 78 and E.O. 13627).

☐ (ii) Alternate I (Mar 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).

☐ (40) 52.222-54, Employment Eligibility Verification (Jan 2025) (Executive Order 12989). (Not applicable to the acquisition of commercially available off-the-shelf items or certain other types

of commercial products or commercial services as prescribed in FAR 22.1803.)

[] (41)

(i) 52.223-9, Estimate of Percentage of Recovered Material Content for EPA-Designated Items (May 2008) (42 U.S.C. 6962(c)(3)(A)(ii)). (Not applicable to the acquisition of commercially available off-the-shelf items.)

[] (ii) Alternate I (May 2008) of 52.223-9 (42 U.S.C. 6962(i)(2)(C)). (Not applicable to the acquisition of commercially available off-the-shelf items.)

[] (42) 52.223-11, Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons (May 2024) (42 U.S.C. 7671, et seq.).

[] (43) 52.223-12, Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners (May 2024) (42 U.S.C. 7671, et seq.).

[] (44) 52.223-20, Aerosols (May 2024) (42 U.S.C. 7671, et seq.).

[] (45) 52.223-21, Foams (May 2024) (42 U.S.C. 7671, et seq.).

[X] (46) 52.223-23, Sustainable Products and Services (MAR 2025) (DEVIATION 2025-O0004)) (7 U.S.C. 8102, 42 U.S.C. 6962, 42 U.S.C. 8259b, and 42 U.S.C. 7671l).

[] (47)

(i) 52.224-3 Privacy Training (Jan 2017) (5 U.S.C. 552 a).

[] (ii) Alternate I (Jan 2017) of 52.224-3.

[] (48)

(i) 52.225-1, Buy American-Supplies (Oct 2022) (41 U.S.C. chapter 83).

[] (ii) Alternate I (Oct 2022) of 52.225-1.

[] (49)

(i) 52.225-3, Buy American-Free Trade Agreements-Israeli Trade Act (NOV 2023) (19 U.S.C. 3301 note, 19 U.S.C. 2112 note, 19 U.S.C. 3805 note, 19 U.S.C. 4001 note, 19 U.S.C. chapter 29 (sections 4501-4732), Public Law 103-182, 108-77, 108-78, 108-286, 108-302, 109-53, 109-169, 109-283, 110-138, 112-41, 112-42, and 112-43.

[] (ii) Alternate I [Reserved].

[] (iii) Alternate II (Jan 2025) of 52.225-3.

[] (iv) Alternate III (Feb 2024) of 52.225-3.

[] (v) Alternate IV (Oct 2022) of 52.225-3.

[] (50) 52.225-5, Trade Agreements (NOV 2023) (19 U.S.C. 2501, et seq., 19 U.S.C. 3301 note).

[] (51) 52.225-13, Restrictions on Certain Foreign Purchases (Feb 2021) (E.O.'s, proclamations, and statutes administered by the Office of Foreign Assets Control of the Department of the Treasury).

[] (52) 52.225-26, Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).

[] (53) 52.226-4, Notice of Disaster or Emergency Area Set-Aside (Nov 2007) (42 U.S.C. 5150).

[] (54) 52.226-5, Restrictions on Subcontracting Outside Disaster or Emergency Area (Nov 2007) (42 U.S.C. 5150).

[X] (55) 52.226-8, Encouraging Contractor Policies to Ban Text Messaging While Driving (May 2024) (E.O. 13513).

[] (56) 52.229-12, Tax on Certain Foreign Procurements (Feb 2021).

☐ (57) 52.232-29, Terms for Financing of Purchases of Commercial Products and Commercial Services (Nov 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).

☐ (58) 52.232-30, Installment Payments for Commercial Products and Commercial Services (Nov 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).

☒ (59) 52.232-33, Payment by Electronic Funds Transfer-System for Award Management (Oct2018) (31 U.S.C. 3332).

☐ (60) 52.232-34, Payment by Electronic Funds Transfer-Other than System for Award Management (Jul 2013) (31 U.S.C. 3332).

☐ (61) 52.232-36, Payment by Third Party (May 2014) (31 U.S.C. 3332).

☐ (62) 52.239-1, Privacy or Security Safeguards (Aug 1996) (5 U.S.C. 552a).

☐ (63) 52.240-1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (Nov 2024) (Sections 1821-1826, Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

☐ (64) 52.242-5, Payments to Small Business Subcontractors (Jan 2017) (15 U.S.C. 637(d) (13)).

☐ (65)

(i) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (Nov 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631).

☐ (ii) Alternate I (Apr 2003) of 52.247-64.

☐ (iii) Alternate II (Nov 2021) of 52.247-64.

(c) The Contractor shall comply with the FAR clauses in this paragraph (c), applicable to commercial services, that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

[Contracting Officer check as appropriate.]

☒ (1) 52.222-41, Service Contract Labor Standards (Aug 2018) (41 U.S.C. chapter 67).

☒ (2) 52.222-42, Statement of Equivalent Rates for Federal Hires (May 2014) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

☐ (3) 52.222-43, Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (Multiple Year and Option Contracts) (Aug 2018) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

[] (4) 52.222-44, Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (May 2014) (29U.S.C.206 and 41 U.S.C. chapter 67).

[] (5) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014) (41 U.S.C. chapter 67).

[] (6) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (May 2014) (41 U.S.C. chapter 67).

[X] (7) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (Jan 2022).

[] (8) 52.222-62, Paid Sick Leave Under Executive Order 13706 (Jan 2022) (E.O. 13706).

[] (9) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (Jun 2020) (42 U. S.C. 1792).

[] (10) 52.247-69, Reporting Requirement for U.S.-Flag Air Carriers Regarding Training to Prevent Human Trafficking (Jan 2025) (49 U.S.C. 40118(g)).

(d) Comptroller General Examination of Record. The Contractor shall comply with the provisions of this paragraph (d) if this contract was awarded using other than sealed bid, is in excess of the simplified acquisition threshold, as defined in FAR 2.101, on the date of award of this contract, and does not contain the clause at 52.215-2, Audit and Records-Negotiation.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.

(2) The Contractor shall make available at its offices at all reasonable times the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR subpart 4.7, Contractor Records Retention, of the other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(e)

(1) Notwithstanding the requirements of the clauses in paragraphs (a), (b), (c), and (d) of this clause, the Contractor is not required to flow down any FAR clause, other than those in this paragraph (e)(1), in a subcontract for commercial products or commercial services. Unless otherwise indicated below, the extent of the flow down shall be as required by the clause-

(i) 52.203-13, Contractor Code of Business Ethics and Conduct (Nov 2021) (41 U.S.C. 3509).

(ii) 52.203-17, Contractor Employee Whistleblower Rights (Nov 2023) (41 U.S.C. 4712).

(iii) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(iv) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (Dec 2023) (Section 1634 of Pub. L. 115-91).

(v) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (Nov 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).

(vi) 52.204-27, Prohibition on a ByteDance Covered Application (Jun 2023) (Section 102 of Division R of Pub. L. 117-328).

(vii)

(A) 52.204-30, Federal Acquisition Supply Chain Security Act Orders-Prohibition. (Dec 2023) (Pub. L. 115-390, title II).

(B) Alternate I (Dec 2023) of 52.204-30.

(viii) 52.219-8, Utilization of Small Business Concerns (Jan 2025) (15 U.S.C. 637(d)(2) and (3)), in all subcontracts that offer further subcontracting opportunities. If the subcontract (except subcontracts to small business concerns) exceeds the applicable threshold specified in FAR 19.702(a) on the date of subcontract award, the subcontractor must include 52.219-8 in lower tier subcontracts that offer subcontracting opportunities.

(ix) [Reserved]

(x) [Reserved]

(xi) 52.222-35, Equal Opportunity for Veterans (Jun 2020) (38 U.S.C. 4212).

(xii) 52.222-36, Equal Opportunity for Workers with Disabilities (Jun 2020) (29 U.S.C. 793).

(xiii) 52.222-37, Employment Reports on Veterans (Jun 2020) (38 U.S.C. 4212).

(xiv) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (Dec 2010) (E.O. 13496). Flow down required in accordance with paragraph (f) of FAR clause 52.222-40.

(xv) 52.222-41, Service Contract Labor Standards (Aug 2018) (41 U.S.C. chapter 67).

(xvi)

(A) 52.222-50, Combating Trafficking in Persons (Nov 2021) (22 U.S.C. chapter 78 and E.O. 13627).

(B) Alternate I (Mar 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).

(xvii) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014) (41 U.S.C. chapter 67).

(xviii) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (May 2014) (41 U.S.C. chapter 67).

(xix) 52.222-54, Employment Eligibility Verification (Jan 2025) (E.O. 12989).

(xx) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (Jan 2022).

(xxi) 52.222-62, Paid Sick Leave Under Executive Order 13706 (Jan 2022) (E.O. 13706).

(xxii)

(A) 52.224-3, Privacy Training (Jan 2017) (5 U.S.C. 552a).

(B) Alternate I (Jan 2017) of 52.224-3.

(xxiii) 52.225-26, Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).

(xxiv) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (Jun 2020) (42 U.S.C. 1792). Flow down required in accordance with paragraph (e) of FAR clause 52.226-6.

(xxv) 52.232-40, Providing Accelerated Payments to Small Business Subcontractors (Mar 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801). Flow down required in accordance with paragraph (c) of 52.232-40.

(xxvi) 52.240-1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (Nov 2024) (Sections 1821-1826, Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

(xxvii) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (Nov 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631). Flow down required in accordance with paragraph (d) of FAR clause 52.247-64.

(2) While not required, the Contractor may include in its subcontracts for commercial products and commercial services a minimal number of additional clauses necessary to satisfy its contractual obligations.

(End of clause)

Addendum to Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.209-10	Prohibition on Contracting With Inverted Domestic Corporations. (Deviation 2026-O0038)	2026-02		
52.222-3	Convict Labor. (Deviation 2026-O0038)	2026-02		
52.223-5	Pollution Prevention and Right-to-Know Information.	2024-05		
52.223-23	Sustainable Products. (Deviation 2026-O0038)	2026-02		
52.240-91	Security Prohibitions and Exclusions. (Deviation 2026-O0038)	2026-02		
52.244-6	Subcontracts for Commercial Products and Commercial Services. (Deviation 2026-O0038)	2026-02		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.201-7000	Contracting Officer's Representative.	1991-12		

252.225-7041	Correspondence in English.	1997-06
252.237-7010	Prohibition on Interrogation of Detainees by Contractor Personnel.	2023-01

FAR Clauses Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.217-9	Option to Extend the Term of the Contract.	2000-03		

Option to Extend the Term of the Contract (Mar 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within 1 day; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 30 days before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed 24 (months).

(End of clause)

List of Contract Documents, Exhibits, or Attachments

KO STATEMENT

Only a warranted Contracting Officer (either a Contracting Officer or an Administrative Contracting Officer (ACO)), acting within their appointed limits, has the authority to issue modifications or otherwise change the terms and conditions of this contract. If an individual other than the Contracting Officer attempts to make changes to the terms and conditions of this contract, you shall not proceed with the change and shall immediately notify the Contracting Officer. Proceeding with any work not authorized by the Contracting Officer will be at the Contractor's own risk.

The Contractor shall submit invoices by mail or email, as follows:

U.S. Army Corps of Engineers

Walla Walla District

CENWW-PPL-R

ATTN: Leah Bonstead

201 North Third Avenue

Walla Walla, Washington 99362

Leah.Bonstead@usace.army.mil

PERFORMANCE WORK STATEMENT (PWS)

Toothaker Habitat Management Unit Vegetation Removal, McNary Lock and Dam Operating Project

USACE WALLA WALLA DISTRICT

1. DESCRIPTION OF SERVICES

1.1 The US Army Corps of Engineers (USACE), Walla Walla District has a requirement to remove Russian olive trees and other invasive vegetation from two areas in Toothaker Habitat Management Unit, McNary Project, in Finley, Washington. One of the areas is along the shoreline (Shoreline Area, approximately 4.5 acres) and the other is inland (Inland Area, 1.75 acres). These areas combined total approximately 6.25 acres. The purpose of vegetation removal is to prepare the areas for native habitat restoration.

1.2 The Contractor shall provide all personnel, equipment, supplies, transportation, tools, materials, supervisions, and other items and non-personal services necessary to perform work as defined in the performance work statement included in subsequent task order except for those items specified as government furnished property and services. The Contractor shall perform to the standards in this contract.

2. DEFINITIONS

2.1 Acceptable Quality Level (AQL). A predetermined value selected and used by the Government Quality Assurance inspector to distinguish between satisfactory and unsatisfactory performance.

2.2 Contracting Officer (CO or KO). "Contracting Officer" is the person executing this contract on behalf of the Government.

2.3 Contracting Officer's Representative (COR). An individual designated in writing by the Contracting Officer responsible for administration of the contract.

2.4 Contractor. The term Contractor refers to the prime Contractor and all Contractor employees and personnel. The prime Contractor shall be responsible for ensuring all Sub-Contractor comply with the provisions of this contract.

2.5 Defective Service. A service or output that does not meet the standard of performance requirement specified in the contract for that service.

2.6 Performance Requirement. The point that divides acceptable and unacceptable performance of a task according to the PWS and the Inspection of Services clause.

2.7 Quality Assurance. A planned and systematic pattern of all Government actions necessary to provide confidence that adequate technical requirements are established; products and services conform to established technical requirements; and satisfactory performance is achieved. For purposes of this contract, quality assurance refers to actions by the Government assurance functions for a contracted service.

2.8 Quality Assurance Representative (QAR). An individual designated to inspect the Contractor's performance.

2.9 Quality Control. Those actions taken by a Contractor to control the production of outputs to ensure that they conform to the contract requirements.

3. PERFORMANCE

3.1 Recognized holidays: The Contractor is not required to perform services on Federal Holidays, as listed below:

New Year's Day

Martin Luther King Jr.'s Birthday

Washington's Birthday

Memorial Day

Juneteenth

Independence Day

Labor Day

Columbus Day

Veteran's Day

Thanksgiving Day

Christmas Day

4. OBJECTIVES AND STANDARDS

4.1 Vegetation Removal: The Contractor shall be responsible for removal of invasive trees (i.e. Russian olive, tree-of-heaven, black locust, etc.) and brush (blackberry and false indigo) from the Shoreline Area, totaling approximately 4.5 acres by mechanical means with minimal landscape disturbance. Equipment used for this item must be capable of maneuvering over small creeks and /or ditches and work in uneven terrain. A Russian olive tree is considered a single tree if the tree or limb originates within one foot of the ground level and is one inch or more in diameter one foot away from the origination point. All standing invasive trees and brush in the work area shall be cut and mulched to ground level. After cutting and/or mulching, 80% of the vegetation shall be 12 inches or less in length and four inches or less in diameter. Additional cutting and/or mulching shall be required if the initial work does not meet these requirements. Approximately 4 acres of shoreline tree removal will be completed while avoiding felling trees or dropping limbs into the Columbia River.

4.2 Herbicide Applications: The Contractor shall be responsible for treating invasive vegetation within the Shoreline (4.5 acres) and Inland Areas (1.75 acres). Following vegetation removal in the Shoreline Area, the Contractor will treat the cleared areas for resprouting invasive species of all kinds (woody and herbaceous) using herbicides and surfactants. The Contractor shall treat invasive vegetation in the spring and summer of 2026 and 2027, wait one month and treat again (for up to three treatments each year). As the Shoreline Area is scheduled to be planted with native vegetation in November 2026, the Contractor will take care to avoid the new plantings when applying herbicides. In the Inland Area, approximately 1.75 acres will be treated using herbicides and surfactants. Invasive weeds observed in this area include rush skeleton weed, yellow starthistle, and whitetop. In the Inland area, the Contractor shall treat invasive vegetation in the spring and summer of 2026 and 2027, wait one month, then treat again (for up to three treatments). Herbicide applications and reporting shall follow the Walla Walla District's Integrated Pest Management Plan (IPMP). The USACE Contracting Officer's representative or technical point of contact will discuss the IPMP guidelines and requirements, and work site access following the contract award.

<https://www.nwww.usace.army.mil/Missions/Pest-Management/>

4.3 Timelines: This work shall occur during specific work windows as follows. Vegetation removal in the Shoreline Area from contract award to 1 May 2026. Up to three treatments of herbicide application in the Shoreline and Inland Areas, spaced one month apart, during spring and summer of 2026 and 2027, following the IPMP guidelines.

4.4 Place of Performance: The location of work to be performed under this contract is in Finley, Washington, along the Columbia River at the USACE Walla Walla District Toothaker Habitat Management Unit (HMU) as identified in the maps below.

5. GENERAL INFORMATION

5.1 Quality Assurance: The government shall evaluate the Contractor's performance under in accordance with the Quality Assurance Surveillance Plan. This plan is primarily focused on what the government must do to ensure the Contractor has performed in accordance with the performance standards. It defines how the performance standards will be applied, the frequency of surveillance, and the minimum acceptable defect rate(s).

5.2 Contracting Officer's Representative (COR): A COR will be identified at award to monitor all technical aspects of the contract and assists in contract administration. The COR is authorized to perform the following functions: assure that the Contractor performs the technical requirements of the contract; perform inspections necessary in connection with contract performance; maintain written and oral communications with the Contractor concerning technical aspects of the contract; monitor Contractor's performance and notify both the Contracting Officer and Contractor of any deficiencies; coordinate availability of government furnished property, and provide site entry of Contractor personnel. The COR is not authorized to change any of the terms and conditions of the base contract or task order.

6. SECURITY REQUIREMENTS

Contractor personnel working onsite at a government facility shall adhere to the following.

6.1 General security requirements and guidance: The security requirements described below apply to all contract personnel (including employees of the prime Contractor ("Contractor") and all subcontractor employees) supporting the performance requirements of this contract. The Contractor is responsible for compliance with these security requirements. Questions regarding security matters shall be addressed to the designated Government representative (e.g., Contracting Officer Representative (COR), Requiring Activity (RA) representative, or Contracting Officer (if a COR or other RA representative is not appointed)). Contract personnel are critical to the overall security and safety of US Army Corps of Engineers (USACE) installations, facilities and activities, and security awareness training contributes to those efforts. The Department of Defense (DoD) and Army security training requirements specified below, if applicable, are performance requirements; all applicable contract personnel shall complete initial training within 30 days of contract award or the date new contract personnel begin performance on the contract. Within 5 business days from the completion of training, the Contractor shall provide written documentation (e.g., email or memorandum) to the Government representative. The documentation shall include the names of contract personnel trained and which training they completed; the Contractor shall maintain training records as part of their contract files and be prepared to provide copies of training certificates to the Government representative. Contractor personnel and vehicles are subject to search when entering federal installations. Additionally, all contract personnel shall comply with Force Protection Condition (FPCON) measures, Random Antiterrorism Measures (commonly referred to as "RAMs"), and Health Protection Condition (HPCON) measures. The Contractor is responsible for meeting performance requirements during elevated FPCON and/or HPCON levels in accordance with applicable RA plans and procedures --this includes identifying mission essential and non-mission essential personnel. In addition to the changes otherwise authorized by the changes clause of this contract, should the FPCON or HPCON levels at any individual facility or installation change, the Government may implement security changes that affect contract personnel. The Contractor shall ensure all contract personnel are aware of their security responsibilities, including any site-specific requirements identified in local policies or procedures.

6.2. Physical security and access control requirements: All contract personnel requiring physical access to a federal installation or facility shall comply with the access control procedures of that location. Contract personnel requiring unescorted access to meet contract performance requirements on a DoD installation in the US shall be vetted by the installation/facility Provost Marshal/Directorate of Emergency Services/Security Office using the National Crime Information Center-Interstate Identification Index (commonly referred to as "NCIC-III") and Terrorist Screening Database (commonly referred to as "TSDB"). Contract personnel shall comply with all personal identity verification requirements specified in installation/facility policies and procedures. Contract personnel who do not meet requirements for unescorted access to USACE facilities shall coordinate escorted access with the Government representative, as needed. Contract personnel who receive keys, access cards, or lock combinations that provide access to government-owned property shall comply with key and lock control procedures of the RA.

6.3 Escorting in classified and/or sensitive areas: In accordance with applicable regulations, all contract personnel who do not possess the appropriate security clearance or access privileges will be escorted in areas where they may be exposed to classified information or operations, sensitive information or activities, or restricted areas.

6.4 Pre-screening Candidates Using the E-Verify Program: Contractors shall comply with the requirements set forth in FAR clause 52.222-54 Employment Eligibility Verification and FAR Subpart 22.18 in using the E-Verify Program at <https://www.e-verify.gov/> to meet the contract employment eligibility requirements. Contractors are encouraged to cooperate with Federal and State agencies responsible for enforcing labor requirements to include eligibility for employment under United States immigration laws in accordance with FAR 22.102-1(i). An initial list of the verified/eligible candidates shall be provided to the COR no later than 3 business days after the initial contract award. When contracts are with individuals, the individuals will be required to complete a Form I-9, Employment Eligibility Verification, and submit it to the Contracting Officer to become part of the official contract file.

7. SUBMITTALS AND DELIVERABLES

7.1 Pre-screening with E-Verify. Submit the initial list of eligible employees to the COR within 3 business days of contract award.

7.2 Vegetation Removal and Herbicide Application Plan. Submit a plan for vegetation removal within the areas specified in the maps above. The plan shall include what equipment will be used, estimate a timeline for removal, and specify herbicide post-removal treatment including chemicals and application methods.

7.3 Invoicing. Invoices may be submitted to the COR after each CLIN is completed.

8. KEY CONTRACTOR PERSONNEL

8.1 The Prime Contractor and their designated point of contact (POC), if applicable, are considered key personnel. At least one Contractor employee or representative must serve as an onsite POC for the duration of work. This individual may be the Prime Contractor and will

communicate any onsite needs, conditions, or problems with the COR. The names of key personnel shall be provided in writing to the COR within 15 calendar days after award of the Task Order.

8.2 Veterans Employment Emphasis for U.S. Army Corps of Engineers Contracts: In addition to complying with the requirements outlined FAR clause 52.222-35, Equal Opportunity for Veterans, and FAR clause 52.222-37, Employment Reports on Veterans and Department of Labor Regulations, U.S. Army Corps of Engineers (USACE) contractors and subcontractors at all tiers are encouraged to promote the training and employment of U.S. veterans while performing under a USACE contract. While no set-aside, evaluation preference, or incentive applies to the solicitation or performance under the resultant contract or task orders, USACE contractors are encouraged to seek out highly qualified veterans to perform services under the resulting task orders. The following resources are available to assist USACE contractors in their outreach efforts:

Federal Veteran employment information at <http://www.fedshirevets.gov/index.aspx>

Department of Labor Veterans Employment Assistance <http://www.dol.gov/vets/>

Department of Veterans Affairs - VOW to Hire Heroes Act <http://benefits.va.gov/vow>

Army Wounded Warrior Program <http://wtc.army.mil/modules/employers/index.html>

U.S. Chamber of Commerce Foundation - Hiring Our Heroes <http://www.hiringourheros.org/>

Guide to Hiring Veterans - Reference Material

http://www.whitehouse.gov/sites/default/files/docs/white_house_business_council_-_guide_to_hiring_veterans_0.pdf

9. KEY GOVERNMENT PERSONNEL

Contract Officer - Kristin Hyde

kristin.a.hernandez@usace.army.mil

(509) 939-8152

Contract Specialist - Kristin Kreutzer

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(509) 527-7010

COR - Leah Bonstead

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USACE Technical POC - Brad Trumbo

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(509)386-4400

*** END OF NARRATIVE ***

Identifier	Document Name	Document Description	Reference Identifier	Date	Line Item	Page Numbers	Document Type	Provided Under Separate Cover
0001	WD #2015-5 527	Wage Determination		03 Dec 2025		10	Attachment	No